

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio <i>ex rel.</i> , Dave Yost, Ohio	:	
Attorney General,	:	
	:	
Plaintiff,	:	Case No. 20IN006-149
	:	
vs.	:	Judge James Kimbler
	:	
The Landings Property Owners Association,	:	
Inc., <i>et al.</i> ,	:	
	:	
Defendants.	:	

NOTICE OF SERVICE OF SUBPOENA

Consistent with Civ. R. 45, Defendant, Mullins Bros. Ltd., by and through undersigned counsel, hereby provides notice of service of subpoena, which was issued and served upon the following:

1. Kory Kidwell – issued on October 11, 2023 and served via email on October 12, 2023 via email to kkidwell@kclawohio.com, attached as Exhibit A.

Respectfully submitted,

/s/ Kelli J. Amador

William M. Mattes (0040465)

Kelli J. Amador (0095550)

DINSMORE & SHOHL LLP

191 W. Nationwide Blvd., Suite 200

Columbus, Ohio 43215

Phone: 614.628.6880

Fax: 614.628.6890

Email: bill.mattes@dinsmore.com

kelli.amador@dinsmore.com

Counsel for Defendant Mullins Bros. Ltd.

Counsel for Cross-Claim Plaintiff and Cross-Claim Defendant, Mullins Bros. Ltd.

CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via email or regular mail this 12th day of October, 2023

<i>Via Email</i> Brett A. Kravitz, Esq. Matthew E. Meyer, Esq. Assistant Attorneys General Environmental Enforcement Section 2045 Morse Road, Building A-3 Columbus, Ohio 43229 brett.kravitz@OhioAGO.gov matthew.meyer@OhioAGO.gov <i>Attorneys for Plaintiff State of Ohio</i>	<i>Via Email</i> Cari Fusco Evans, Esq. Mark F. Fischer, Esq. Fischer, Evans & Robbins, Ltd. 3521 Whipple Avenue NW Canton, Ohio 44718 cfevans@fer-law.net mff@fer-law.net <i>Attorneys for Defendant Waters Edge Homeowners' Association</i>
<i>Via Email</i> City of Mount Vernon c/o P. Robert Broeren, Jr., Esq. City Law Director 5 North Gay Street, Suite 222 Mount Vernon, Ohio 43050 probertbroeren@mountvernonohio.org <i>Attorney for Defendant City of Mount Vernon</i>	<i>Via Email</i> Stephen P. Samuels, Esq. Christina Wieg, Esq. Frost Brown Todd 10 W. Broad Street, Suite 2300 Columbus, Ohio 43215 ssamuels@fbtlaw.com cwieg@fbtlaw.com <i>Attorneys for Defendant City of Mount Vernon</i>
<i>Via Email</i> Adam B. Landon, Esq. Eric T. Michener, Esq. Critchfield, Critchfield & Johnson Ltd. 10 S. Gay Street, P.O. Box 469 Mount Vernon, Ohio 432050 landon@ccj.com michener@ccj.com <i>Attorneys for "Quitclaim Defendants"</i>	<i>Via Email</i> Noel B. Alden, Esq. Zelkowitz, Barry & Cullers, Ltd. 103 South Main Street Mount Vernon, Ohio 43050 nalden@zbclaw.com <i>Attorney for Amy E. Badertscher and Michael C. Reilly</i>

<i>Via Email</i> Stephen A. Weigand, Esq. Faruki PLL 201 E. 5th Street, Suite 1420 Cincinnati, Ohio 45202 sweigand@ficlaw.com Attorney for Defendants Roger and Sharon Reed	<i>Via Email</i> Kenneth E. Lane, Esq. 812 Coshocton Avenue, #101 Mount Vernon, Ohio 43050 laneoffices@gmail.com Attorney for Michele D. Lane
<i>Via Email</i> Stephen E. Chappelle, Esq. Kyle D. Tucker, Esq. Eastman & Smith Ltd. 100 E. Broad Street, Suite 2100 Columbus, Ohio 43215 sechappelle@eastmansmith.com kdtucker@eastmansmith.com Attorneys for Long Third-Party Defendants	<i>Via Email</i> Cynthia A. Cunningham, Esq. Kidwell & Cunningham, Ltd. 112 North Main Street Mount Vernon, Ohio 43050 ccunningham@kclawohio.com Pro Se Defendant
<i>Via Email</i> Gary and Julie Fisher and Iris Morales 26 Wildwood Lane East Mount Vernon, Ohio 43050 femaleundercov@yahoo.com Pro Se Defendants	<i>Via Regular Mail</i> Daniel Risser and Cara Salmon Risser 43 Wildwood Lane West Mount Vernon, Ohio 43050 Defendant
<i>Via Regular Mail</i> Jerry and Diane Harper 53 Mallard Pointe Mount Vernon, Ohio 43050 Defendants	<i>Via Regular Mail</i> Nuh and Asiye Aydin 5 Longvue Court Mount Vernon, Ohio 43050 Defendant
<i>Via Regular Mail</i> Loretta V. Godfrey 43 Mallard Pointe Mount Vernon, Ohio 43050 Defendant	<i>Via Regular Mail</i> Phillip and Helena Curry 63 Woodlake Trail Mount Vernon, Ohio 43050 Defendant
<i>Via Regular Mail</i> Janet L. Schisler 51 Mallard Pointe Mount Vernon, Ohio 43050 Defendant	<i>Via Regular Mail</i> Peggy A. Farmer 45 Mallard Pointe Mount Vernon, Ohio 43050 Defendant

<i>Via Regular Mail</i> Crown Hill Condominiums at Mount Vernon Unit-Owners Association c/o Wilging, Roush & Parsons, CPAs Registered Agent 1684 Venture Drive, Suite B Mount Vernon, Ohio 43050 <i>Defendant</i>	<i>Via Regular Mail</i> The Landings Property Owners Association, Inc. c/o George Bertko, Registered Agent P.O. Box 336 Mount Vernon, Ohio 43050 <i>Defendant</i>
<i>Via Regular Mail</i> Daniel B. and Cara D. Salmon Risser 43 Wildwood Lane West Mount Vernon, Ohio 43050 <i>Defendants</i>	<i>Via Regular Mail</i> Michele D. Lane 46 Wildwood Lane West Mount Vernon, Ohio 43050 <i>Defendant</i>
<i>Via Regular Mail</i> Philip B. and Priscilla J. Petric 54 Wildwood Lane West Mount Vernon, Ohio 43050 <i>Defendants</i>	<i>Via Regular Mail</i> Amy E. Badertscher Michael C. Reilly 9 Wildwood Lane East Mount Vernon, Ohio 43050 <i>Defendants</i>
<i>Via Regular Mail</i> Julie A. Didingier Trustee, Stull Preservation Trust 9 Longvue Court Mount Vernon, Ohio 43050 <i>Defendant</i>	<i>Via Regular Mail</i> Phillip W. and Helena J. Curry 63 Woodlake Trail Mount Vernon, Ohio 43050 <i>Defendants</i>
<i>Via Regular Mail</i> Cynthia A. Cunningham Trustee, Cynthia A. Cunningham Trust 71 Woodlake Trail Mount Vernon, Ohio 43050 <i>Defendant</i>	<i>Via Regular Mail</i> Jon W. and Kristen N. Witham, Trustees Witham Family Revocable Trust 70 Woodlake Trail Mount Vernon, Ohio 43050 <i>Defendants</i>

/s/ Kelli J. Amador

Kelli J. Amador (0095550)

IN THE KNOX COUNTY COURT OF COMMON PLEAS

CIVIL CASE SUBPOENA DUCES TECUM

STATE OF OHIO, EX REL.
DAVE YOST,
ATTORNEY GENERAL

Plaintiff,

-vs-

THE LANDINGS PROPERTY
ASSOCIATION, INC., ET AL.

Defendant.

Case No. 20IN06-0149

Judge JAMES L. KIMBLER

TO: Kory Kidwell
Kidwell & Cunningham Ltd.
112 N. Main Street
Mount Vernon OH 43050
kkidwell@kclawohio.comDATE: Friday, October 13, 2023
TIME: 5:00 p.m.
PLACE: 191 W. Nationwide Blvd., Ste. 200, Columbus OH 43215

YOU ARE HEREBY COMMANDED TO:

- ☐ ATTEND AND GIVE TESTIMONY AT A DEPOSITION ON THE DATE, TIME AND AT THE PLACE SPECIFIED BELOW.
- ☐ ATTEND AND GIVE TESTIMONY AT A TRIAL ON THE DATE, TIME AND AT THE PLACE SPECIFIED BELOW
- ☐ ATTEND AND PRODUCE DOCUMENTS AT A TRIAL DEPOSITION ON THE DATE, TIME AND AT THE PLACE SPECIFIED BELOW.
- ☒ **PRODUCE AND PERMIT INSPECTION AND COPYING, ON THE DATE AND AT THE TIME AND PLACE SPECIFIED BELOW, OF ANY DESIGNATED DOCUMENTS THAT ARE IN YOUR POSSESSION, CUSTODY OR CONTROL.**
- ☐ PRODUCE AND PERMIT INSPECTION AND COPYING, TESTING OR SAMPLING, ON THE DATE AND AT THE TIME AND PLACE SPECIFIED BELOW, OF ANY TANGIBLE THINGS THAT ARE IN YOUR POSSESSION, CUSTODY OR CONTROL.
- ☐ PERMIT ENTRY UPON THE FOLLOWING DESCRIBED LAND OR OTHER PROPERTY, FOR THE PURPOSES DESCRIBED IN CIV. R. 34(A)(3), ON THE DATE AND AT THE TIME SPECIFIED BELOW:

☐ **DESCRIPTION OF ITEMS TO BE PRODUCED:** Any and all records relating to real estate closings at The Landings Development Phase VII & VIII, relating to Home Owners Association (HOA) and deed restrictions. In lieu of appearance, by may respond via email to Kelli J. Amador, kelli.amador@dinsmore.com or via regular U.S. mail to Kelli J. Amador, 191 West Nationwide Blvd., Suite 200, Columbus OH 43215.

Kelli J. Amador 191 West Nationwide Blvd., Suite 200, Columbus OH 43215 0040465
Attorney Address/Phone # (Required) Supreme Court #

Choose One:

- ☐ Plaintiff
- ☐ Defendant
- ☒ **Other (Specify): Def. Mullins Bros. Ltd. & Cross-Claim Plaintiff & Cross-Claim Defendant, Mullins Bros. Ltd.**

SHERIFF FEES

Service _____

Mileage _____

Copy _____

Total _____

RETURN OF SERVICE

I received this subpoena on October 11, 2023, and served the above named party by email on this 11th day of October, 2023.

I was unable to complete service for the following reason:

/s/ Kelli J. Amador (0040465)

Signature of Serving Party

Check one: ☐ Deputy Sheriff ☒ Attorney ☐ Process Server ☐ Deputy Clerk

NOTE: Read all information on the second page of this subpoena

**CIVIL RULE 45 (C) PROTECTION OF PERSONS SUBJECT TO
SUBPOENAS.**

1. A party or an attorney responsible for the issuance and service of a subpoena shall take reasonable steps to avoid imposing undue burden or expense on a person subject to that subpoena.
2. (a) A person commanded to produce under divisions (a)(1)(b)(ii), (iii), (iv), or (v) of this rule need not appear in person at the place of production or inspection unless commanded to attend and give testimony at a deposition, hearing, or trial.

(b) Subject to division (d)(2) of this rule, a person commanded to produce under divisions (a)(1)(b)(ii), (iii), (iv), or (v) of this rule may, within fourteen days after service of the subpoena or before the time specified for compliance if such time is less than fourteen days after service, serve upon the party or attorney designated in the subpoena written objections to production. If objection is made, the party serving the subpoena shall not be entitled to production except pursuant to an order of the court by which the subpoena was issued. If objection has been made, the party serving the subpoena, upon notice to the person commanded to produce, may move at any time for an order to compel the production. An order to compel production shall protect any person who is not a party or an officer of a party from significant expense resulting from the production commanded.
3. On timely motion, the court from which the subpoena was issued shall quash or modify the subpoena, or order appearance or production only under specified conditions, if the subpoena does any of the following:
 - (a) Fails to allow reasonable time to comply;
 - (b) Requires disclosure of privileged or otherwise protected matter and no exception or waiver applies;
 - (c) Requires disclosure of a fact known or opinion held by an expert not retained or specially employed by any party in anticipation of litigation or preparation for trial as described by Civ. R. 26(B)(5), if the fact or opinion does not describe specific events or occurrences in dispute and results from study by that expert that was not made at the request of any party;
 - (d) Subjects a person to undue burden.
4. Before filing a motion pursuant to division (c)(3)(d) of this rule, a person resisting discovery under this rule shall attempt to resolve any claim of undue burden through discussions with the issuing attorney. A motion filed pursuant to division (c)(3)(d) of this rule shall be supported by an affidavit of the subpoenaed person or a certificate of that person's attorney of the efforts made to resolve any claim of undue burden.
5. If a motion is made under division (c)(3)(c) or (c)(3)(d) of this rule, the court shall quash or modify the subpoena unless the party in whose behalf the subpoena is issued shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship and assures that the person to whom the subpoena is addressed will be reasonably compensated.

CIVIL RULE 45 (D) DUTIES IN RESPONDING TO SUBPOENA.

1. A person responding to a subpoena to produce documents shall, at the person's option, produce them as they are kept in the usual course of business or organized and labeled to correspond with the categories in the subpoena. A person producing documents or electronically stored information pursuant to a subpoena for them shall permit their inspection and copying by all parties present at the time and place set in the subpoena for inspection and copying.
2. If a request does not specify the form or forms for producing electronically stored information, a person responding to a subpoena may produce the information in a form or forms in which the information is ordinarily maintained if that form is reasonably useable, or in any form that is reasonably useable. Unless ordered by the court or agreed to by the person subpoenaed, a person responding to a subpoena need not produce the same electronically stored information in more than one form.
3. A person need not provide discovery of electronically stored information when the production imposes undue burden or expense. On motion to compel discovery or for a protective order, the person from whom electronically stored information is sought must show that the information is not reasonably accessible because of undue burden or expense. If a showing of undue burden or expense is made, the court may nonetheless order production of electronically stored information if the requesting party shows good cause. The court shall consider the factors in Civ. R. 26(b)(4) when determining if good cause exists. In ordering production of electronically stored information, the court may specify the format, extent, timing, allocation of expenses and other conditions for the discovery of the electronically stored information.
4. When information subject to a subpoena is withheld on a claim that it is privileged or subject to protection as trial preparation materials, the claim shall be made expressly and shall be supported by a description of the nature of the documents, communications, or things not produced that is sufficient to enable the demanding party to contest the claim.
5. If information is produced in response to a subpoena that is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a receiving party must promptly return, sequester, or destroy the specified information and any copies within the party's possession, custody or control. A party may not use or disclose the information until the claim is resolved. A receiving party may promptly present the information to the court under seal for a determination of the claim of privilege or of protection as trial-preparation material. If the receiving party disclosed the information before being notified, it must take reasonable steps to retrieve it. The person who produced the information must preserve the information until the claim is resolved.

West, Miranda

From: Korey Kidwell <kkidwell@mrkattorneys.com>
Sent: Thursday, October 12, 2023 2:23 PM
To: West, Miranda; Amador, Kelli
Cc: Amador, Kelli
Subject: RE: Subpoena to K. Kidwell - c/m# 127411.1 - State v. The Landings Property Assoc. et al. (Mullins Bros)

Received.

Korey M. Kidwell, Esq.

Partner and Title Agent

Kidwell & Cunningham, Ltd.
Owl Creek Title Agency, Ltd.
112 North Main Street
Mount Vernon, Ohio 43050
740.397.7474 (office)
740.398.2536 (mobile)
740.397.5466 (facsimile)

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From: West, Miranda <Miranda.West@DINSMORE.COM>
Sent: Thursday, October 12, 2023 2:18 PM
To: Korey Kidwell <kkidwell@mrkattorneys.com>; Amador, Kelli <kelli.amador@dinsmore.com>
Cc: Amador, Kelli <kelli.amador@dinsmore.com>
Subject: Subpoena to K. Kidwell - c/m# 127411.1 - State v. The Landings Property Assoc. et al. (Mullins Bros)

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good Afternoon,

Please see attached Subpoena directed to you. Upon your receipt, please respond indicating acceptance of service.

Regards,
Miranda

Dinsmore

Miranda L. West

OSBA Certified Paralegal

Dinsmore & Shohl LLP • Legal Counsel

191 West Nationwide Blvd, Suite 200, Columbus, OH 43215

T (614) 227-4207 • F (614) 628-6890

From: Korey Kidwell <kkidwell@mrkattorneys.com>
Sent: Wednesday, October 11, 2023 2:34 PM

To: Amador, Kelli <kelli.amador@dinsmore.com>

Subject: email address

Keli:

This is my email address.



Korey M. Kidwell, Esq.
Partner & Title Agent

112 N. Main Street, Mount Vernon, Ohio 43050
73 W. Walnut Street, Marengo, Ohio 43334

740.397.7474 740.397.5466

www.kclawohio.com

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